

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

20. CODY RICHARDSON V. JENNIFER DAVIS

PFL20210489

Respondent filed a Request for Order (RFO) on May 22, 2026, requesting modification of child custody orders as well as an order to re-enroll the minor in Sierra School. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 10, 2026, and a review hearing on September 17th. Petitioner was served on May 27, 2026.

Petitioner filed an RFO to change venue from El Dorado County to Butte County on May 26, 2026. There is no Proof of Service for this document.

Respondent filed a request to reschedule the hearing on Petitioner's RFO on June 17, 2026. The court granted the request and directed Petitioner to properly serve Respondent with the RFO.

Both parties and the minor participated in CCRC. The parties were unable to reach any agreements. A report with recommendations was prepared on August 12, 2026, and mailed to the parties on August 13th.

Respondent filed a Responsive Declaration to Petitioner's RFO on August 31, 2026. Respondent objects to the court considering the RFO as she has still not been properly served.

Respondent filed a Reply Declaration to the CCRC report on September 3, 2026. It was served the same day. Respondent asserts there are internal inconsistencies in the CCRC report regarding the parenting plan. Respondent asserts the narrative portion of the report is correct setting forth that Petitioner shall exercise parenting time the 1st, 3rd, and 5th weekends of the month during the school year. Respondent requests the parties continue to utilize Talking Parents as the communication platform.

Petitioner has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the August 12th CCRC report to be in the best interest of the minor with the following modifications. Petitioner shall have parenting time on the 1st, 3rd, and 5th weekends, with the times as set forth. The parties shall continue to utilize the Talking Parents application for all communication regarding the minor. All other recommendations are adopted as set forth.

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Petitioner's RFO is dropped from calendar due to the failure to properly serve Respondent.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #20: THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE AUGUST 12TH CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR WITH THE FOLLOWING MODIFICATIONS. PETITIONER SHALL HAVE PARENTING TIME ON THE 1ST, 3RD, AND 5TH WEEKENDS, WITH THE TIMES AS SET FORTH. THE PARTIES SHALL CONTINUE TO UTILIZE THE TALKING PARENTS APPLICATION FOR ALL COMMUNICATION REGARDING THE MINOR. ALL OTHER RECOMMENDATIONS ARE ADOPTED AS SET FORTH.

PETITIONER'S RFO IS DROPPED FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE RESPONDENT.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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21. YESENIA JUAREZ TORRES V. FRANCISCO TAPIA ESCALANTE

26FL0591

Petitioner filed a Request for Order (RFO) on June 24, 2026, seeking child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 6, 2026, and a review hearing on September 17, 2026.

Petitioner filed an Application for Posting on June 24, 2026. The court granted the request the same day. There is no Proof of Service showing the posting was completed. There has been no service of the petition and summons on Respondent. As such, the court does not have jurisdiction to make orders.

Neither party appeared at the CCRC appointment.

The court drops the matter from calendar due to the lack of jurisdiction, lack of proper service of the RFO, and the failure to appear at CCRC.

TENTATIVE RULING #21: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF JURISDICTION, LACK OF PROPER SERVICE OF THE RFO, AND THE FAILURE TO APPEAR AT CCRC.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.